

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PORTS AMERICA CHESAPEAKE, LLC AND MARINE
TERMINALS CORPORATION-EAST, *Complainants*

v.

APS EAST COAST, INC., *Respondent*.

DOCKET NO. 23-04

Served: December 11, 2023

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

**ORDER GRANTING JOINT MOTION FOR MODIFICATION OF THE SCHEDULING ORDER AND
SETTING STATUS CONFERENCE**

On December 8, 2023, the parties filed a joint status report and motion for modification of the scheduling order. The parties represent that they have been working to resolve issues regarding their document productions and responses to interrogatories, and that these conflicts, along with the Thanksgiving holiday, prevented them from completing fact depositions within the original schedule. The parties further represent that they are making progress on their disagreements, intend to seek my assistance if needed no later than December 15, 2023, and will be able to complete the fact depositions with a six-week extension to the original schedule.

This is the first request for an extension. The revised schedule proposed by the parties is reasonable and still allows for completion of all discovery within 150 days of the service of Respondent's answer. Good cause having been shown, the motion is **GRANTED**.

To ensure that the parties are making progress in their discussions regarding outstanding discovery issues, **I will schedule a status conference for Monday, December 18, 2023 at 4:00 PM EST**. If the parties have resolved their discovery disputes prior to the conference, they may file a joint status report to that effect at any time prior to the conference and I will cancel it. Otherwise, the parties must be prepared to discuss any remaining discovery disputes at that time. All counsel and party representatives who are needed to resolve discovery issues – including any discussions of the burden of producing requested discovery, confidentiality issues, or any other objections a party has raised to production of requested discovery – must be present.

The parties are hereby **ORDERED** to follow this schedule:

December 18, 2023 The parties will appear at 4:00 PM EST via Teams (a link will be provided) unless they have previously filed a joint status report confirming that the discovery disputes described in their December 8, 2023 status report have been resolved.

January 19, 2024	Fact depositions completed.
February 19, 2024	Complainant's brief, proposed findings of fact, and appendix.
March 19, 2024	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
April 2, 2024	Complainant's reply brief and responses to proposed findings of fact.

**Alex Michael
Chintella**

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Alex M. Chintella
Administrative Law Judge